

ELIZABETH II



1978 CHAPTER iii

An Act to extend the benefits of the Customs Annuity and Benevolent Fund; and for other purposes.
[23rd March 1978]

WHEREAS—

(1) By the Act 56 George 3 c. lxxiii (in this Act referred to as 1816 c. lxxiii. “the Act of 1816”) provision was made for the making of rules and regulations for the establishment and formation of a fund called “the Customs Annuity and Benevolent Fund” (in this Act referred to as “the Fund”) for the benefit of the widows and children or other relatives of the established officers, clerks or other persons belonging to or employed in the Department of the Customs in England and for regulating the conduct and management of the Fund and for making tables of rates of subscription to and payments out of the Fund and for the alteration of any such rules, regulations and tables of rates of subscription and payments and the making of new and additional rules, regulations and tables:

(2) The Act of 1816 further provided that the said rules, regulations and tables should require the approval of four or more of the Commissioners of the Customs and ratification and confirmation by some judge of either of His Majesty’s Courts of King’s Bench or Common Pleas or a Baron of the Exchequer

and it also provided that it should be lawful for the directors of the Fund from time to time to alter any such rules, regulations and tables of rates of subscription and to make new and additional rules, regulations and tables of rates of subscription subject to approval by the subscribers to the Fund and by four or more of the said Commissioners and to ratification and confirmation by such judge or Baron as aforesaid:

(3) Rules, regulations and tables of rates of subscription to and payments out of the Fund were duly made, approved, ratified and confirmed in pursuance of the provisions of the Act of 1816 and have from time to time been duly altered and new and additional rules, regulations and tables have been duly made, approved, ratified and confirmed in pursuance of those provisions:

(4) In pursuance of the provisions of the Act of 1816 and of the said rules, regulations and tables the Fund was duly established and formed:

1896 c. xiv. (5) By the Customs' Annuity and Benevolent Fund Act 1896 the several persons who from time to time should be subscribers to the Fund were constituted a body corporate by the name of "the Customs Annuity and Benevolent Fund Incorporated":

1952 c. 44. (6) By the Customs and Excise Act 1952 the benefits and advantages arising from membership of the Fund are available to and in respect of the Commissioners of Customs and Excise, all officers of the Commissioners and all persons appointed by the Commissioners to discharge any duty relating to any matter in relation to which the said Commissioners are for the time being required in pursuance of any enactment to perform any duties:

1964 c. iii. (7) By the Customs Annuity and Benevolent Fund Act 1964 the rules, regulations and tables of rates may provide for payments out of the Fund to be made during the lifetime of a subscriber, to the subscriber or to his relatives or nominees:

(8) It is expedient that the benefits of the Fund should be extended in manner provided by this Act:

(9) It is expedient that the directors should be empowered to alter or add to the tables of rates of subscription without the necessity to obtain the approval, ratification and confirmation hereinbefore referred to:

(10) It is expedient that the other provisions contained in this Act be enacted:

(11) The purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and

with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. This Act may be cited as the Customs Annuity and Benevo- Short title.
lent Fund Act 1978.

2.—(1) In this Act unless the subject or context otherwise Interpretation.
requires—

“ the Act of 1816 ” means the Act 56 George 3 c. lxxiii 1816 c. lxxiii.
intituled “ An Act for establishing and regulating a
Fund for the Widows, Children, and Relatives of Officers
or Persons belonging to the Department of Customs in
England ”;

“ the existing enactments ” means the unrepealed provisions
of the enactments mentioned in the Schedule to this
Act;

“ the Fund ” means the Customs Annuity and Benevolent
Fund established and formed in pursuance of the
Act of 1816.

(2) Except where the context otherwise requires, any reference
in this Act to any enactment shall be construed as a reference to
that enactment as amended by, or by virtue of, any subsequent
enactment, including this Act.

3. Notwithstanding anything contained in the existing enact- Extension of
ments the spouses and children of subscribers or of persons benefits of
eligible to become subscribers to the Fund may themselves be Fund.
admitted as subscribers to the Fund.

4. In the proviso to section 16 of the Act of 1816 (alterations Alterations
of rules, etc., by directors), for the words “ any Rule, Regulation, of Rules and
or Table of Rates of Subscription already established, or new Regulations.
Rule, Regulation, or Table of Rates of Subscription ” there
shall be substituted the words “ any Rule or Regulation already
established, or new Rule or Regulation ”.

5. In section 5 of the Customs’ Annuity and Benevolent Fund Affixing and
Act 1896 (use of seal), for the words “ three of the directors ” attesting of
and “ three persons ” there shall be substituted the words “ two Common Seal.
of the directors ” and “ two persons ” respectively. 1896 c. xiv.

6. The costs, charges and expenses preliminary to and of Costs of Act.
and incidental to the preparation, obtaining and passing of this
Act or otherwise in relation thereto shall be paid out of the
Fund.

Section 2.

SCHEDULE

THE EXISTING ENACTMENTS

The Act of 1816.

1876 c. 36. Section 285 of the Customs Consolidation Act 1876.

1896 c. xiv. The Customs' Annuity and Benevolent Fund Act 1896.

1952 c. 44. Subsection (3) of section 2 of the Customs and Excise Act 1952.

1964 c. iii. The Customs Annuity and Benevolent Fund Act 1964.



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